

Court No. - 40

Case :- WRIT - C No. - 26984 of 2023

Petitioner :- Mukesh Kumar Dubey

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Sharma

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner, learned Additional Chief Standing Counsel for the State respondents and Shri Udit Chandra, learned counsel for Electricity Department.
2. The petitioner has preferred this writ petition with prayer to direct the respondents to give new connection to the petitioner in his premises being House no.416 Kaparphorawa, Varanasi.
3. Sri Udit Chandra, learned counsel for Electricity Department submits that there is outstanding dues of electricity over the premises in question and as per Clause 4.1 of U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided. In case the petitioner deposits the due amount showing his bonafide, there shall be no hassle in providing new electricity connection to the petitioner.
4. Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The petitioner is at liberty to clear the outstanding amount as per clause 4.1 of U.P. Electricity Supply Code 2005 and accordingly, the Electricity Department may proceed to provide electricity connection on the premises in accordance with law.
5. With these observations, the writ petition is ***disposed of***.

Order Date :- 11.8.2023

A. Pandey